

(2), including setting out factors that the Board must consider before it decides whether to conduct a review;

4. prescribing the form of a production order for the purposes of subsection 231.1 (1). 2017, c. 13, s. 31; 2020, c. 16, Sched. 4, s. 39 (1).

Regulation under par. 2 ii of subs. (1)

(2) A regulation made under subparagraph 2 ii of subsection (1) may, with respect to a prescribed class of tenancies,

(a) prescribe different forms of tenancy agreement depending on whether the tenancy agreements for that class are entered into before a date specified in the regulation or are entered into on or after that date; and

(b) provide that for tenancy agreements that are entered into during a transition period specified in the regulation, either one of the forms described in clause (a) may be used for the purposes of compliance with paragraph 1 of subsection 12.1 (1). 2020, c. 16, Sched. 4, s. 39 (2).

▼ Section Amendments with date in force (d/m/y)

Transition regulations, *Rental Fairness Act, 2017*

241.2 (1) The Lieutenant Governor in Council may make regulations governing transitional matters that, in the opinion of the Lieutenant Governor in Council, are necessary or advisable to deal with issues arising out of the amendments to this Act made by the *Rental Fairness Act, 2017*. 2017, c. 13, s. 32.

Same

(2) A regulation made under subsection (1),

(a) may provide that, despite the coming into force of a provision of this Act, as enacted by the *Rental Fairness Act, 2017*, the provision does not take effect in all or part of the province until the date specified in the regulations;

(b) may provide that a provision of this Act, as it reads immediately before the commencement date of its amendment, repeal or re-enactment by the *Rental Fairness Act, 2017*, continues to apply for a specified period of time and with

necessary modifications, to specified things or in specified circumstances;

(c) may govern the application of provisions of this Act to proceedings before a court or the Board in which a claim is made relating to amendments to this Act made by the *Rental Fairness Act, 2017* and which were commenced before the commencement date of the amendment. 2017, c. 13, s. 32.

▼ Section Amendments with date in force (d/m/y)

Transition regulations, *Protecting Tenants and Strengthening Community Housing Act, 2020*

241.3 (1) The Lieutenant Governor in Council may make regulations governing transitional matters that, in the opinion of the Lieutenant Governor in Council, are necessary or advisable to deal with issues arising out of the amendments to this Act made by Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020*. 2020, c. 16, Sched. 4, s. 40.

Same

(2) A regulation made under subsection (1),

(a) may provide that, despite the coming into force of a provision of this Act, as enacted by Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020*, the provision does not take effect in all or part of the province until the date specified in the regulations;

(b) may provide that a provision of this Act, as it reads immediately before the commencement date of its amendment, repeal or re-enactment by Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020*, continues to apply for a specified period of time and with necessary modifications, to specified things or in specified circumstances;

(c) may govern the application of provisions of this Act to proceedings before a court or the Board in which a claim is made relating to amendments to this Act made by Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* and which were commenced before the commencement date of the amendment. 2020, c. 16, Sched. 4, s. 40.

▼ Section Amendments with date in force (d/m/y)

Transition regulations, *Helping Tenants and Small Businesses Act, 2020*

241.4 (1) The Lieutenant Governor in Council may make regulations governing transitional matters that, in the opinion of the Lieutenant Governor in Council, are necessary or advisable to deal with issues arising out of the amendments to this Act made by Schedule 7 to the *Helping Tenants and Small Businesses Act, 2020*. 2020, c. 23, Sched. 7, s. 3.

Same

(2) A regulation made under subsection (1) may govern the application of provisions of this Act to proceedings before a court or the Board in which a claim is made relating to amendments to this Act made by Schedule 7 to the *Helping Tenants and Small Businesses Act, 2020* and which were commenced before the commencement date of the amendment. 2020, c. 23, Sched. 7, s. 3.

▼ Section Amendments with date in force (d/m/y)

Note: On a day to be named by order of the Lieutenant Governor in Council, the Act is amended by adding the following section: (See: 2025, c. 14, Sched. 12, s. 14)

Transition regulations, *Fighting Delays, Building Faster Act, 2025*

241.5 (1) The Lieutenant Governor in Council may make regulations governing transitional matters that, in the opinion of the Lieutenant Governor in Council, are necessary or advisable to deal with issues arising out of the amendments to this Act made by Schedule 12 to the *Fighting Delays, Building Faster Act, 2025*. 2025, c. 14, Sched. 12, s. 14.

Same

(2) A regulation made under subsection (1) may,

(a) provide that, despite the coming into force of a provision of this Act as enacted by Schedule 12 to the *Fighting Delays, Building Faster Act, 2025*, the provision does not take effect in all or part of the province until the date

specified in the regulation;

(b) provide that a provision of this Act, as it reads immediately before the commencement date of its amendment, repeal or re-enactment by Schedule 12 to the *Fighting Delays, Building Faster Act, 2025*, continues to apply, for a specified period of time and with necessary modifications, to specified things or in specified circumstances;

(c) govern the application of provisions of this Act to proceedings before a court or the Board in which a claim is made relating to amendments to this Act made by Schedule 12 to the *Fighting Delays, Building Faster Act, 2025* and which were commenced before the commencement date of the amendment. 2025, c. 14, Sched. 12, s. 14.

▼ **Section Amendments with date in force (d/m/y)**

PART XVIII TRANSITION

Applications made under *Tenant Protection Act, 1997*

242 (1) Despite the repeal of the *Tenant Protection Act, 1997* but subject to the other provisions of this section, that Act shall be deemed to be continued in force for the purpose only of continuing and finally disposing of applications that were made under that Act before that Act was repealed, including any appeals, motions or other steps in those applications. 2006, c. 17, s. 242 (1).

Default orders

(2) Sections 177 and 192 of the *Tenant Protection Act, 1997* do not apply to an application referred to in subsection 192 (1) of that Act unless, before that Act was repealed, an order was made with respect to the application without holding a hearing. 2006, c. 17, s. 242 (2).

Powers on eviction applications

(3) Section 83 of this Act applies, with necessary modifications, and section 84 of the *Tenant Protection Act, 1997* does not apply, to an application made under the *Tenant*

Protection Act, 1997 before that Act was repealed for an order evicting a tenant, unless the final order in the application was made before that Act was repealed. 2006, c. 17, s. 242 (3).

Eviction orders for arrears of rent

(4) If, pursuant to subsection (1), subsections 72 (4) to (10) of the *Tenant Protection Act, 1997* apply to an eviction order, subsections 74 (11) to (18) of this Act also apply, with necessary modifications, to the eviction order. 2006, c. 17, s. 242 (4).

Eviction and other orders for arrears of rent

(5) Section 82 of this Act applies, with necessary modifications, to an application by a landlord under section 69 of the *Tenant Protection Act, 1997* for an order terminating a tenancy and evicting a tenant based on a notice of termination under section 61 of that Act, and to an application by a landlord under subsection 86 (1) of that Act, unless the final order in the application was made before that Act was repealed. 2006, c. 17, s. 242 (5).

Breach of landlord's responsibility to repair

(6) Section 195 of this Act applies, with necessary modifications, and section 182 of the *Tenant Protection Act, 1997* does not apply, to an application made under subsection 32 (1) of that Act before it was repealed for an order determining that a landlord breached the obligations under subsection 24 (1) or 110 (1) of that Act, unless a final order was made under subsection 34 (1) or 110 (3) of that Act before it was repealed. 2006, c. 17, s. 242 (6).

Application for above guideline increase

(7) Subsections 126 (12) and (13) of this Act apply, with necessary modifications, to an application made under section 138 of the *Tenant Protection Act, 1997*, unless a final order was made under subsection 138 (6) or (10) of that Act before it was repealed. 2006, c. 17, s. 242 (7).

Proceedings before other bodies under earlier legislation

243 Section 223 of the *Tenant Protection Act, 1997* continues to apply, despite the repeal of that Act. 2006, c. 17, s. 243.

Orders, etc., under former Act

244 Subject to section 242, a reference in this Act to an order, application, notice, by-law or other thing made, given, passed or otherwise done under a provision of this Act includes a reference to an order, application, notice, by-law or thing made, given, passed or done under the corresponding provision of the *Tenant Protection Act, 1997*. 2006, c. 17, s. 244.

Information from former Rent Registry

245 (1) The Board shall provide any information it received under subsection 157 (3) of the *Tenant Protection Act, 1997* to members of the public on request. 2006, c. 17, s. 245 (1).

Application

(2) Subsection (1) does not apply after the first anniversary of the date this section comes into force. 2006, c. 17, s. 245 (2).

Use of certain forms

246 Despite the repeal of the *Tenant Protection Act, 1997*, the form of a notice of rent increase, notice of increased charges in a care home or notice of termination that could have been used under that Act may be used for the corresponding purpose under this Act any time within two months after this section comes into force. 2006, c. 17, s. 246.

247-260 OMITTED (AMENDS OR REPEALS OTHER ACTS). 2006, c. 17, s. 247-260.

261 OMITTED (PROVIDES FOR AMENDMENTS TO PROVISIONS OF THIS ACT). 2006, c. 17, s. 261.

262 OMITTED (PROVIDES FOR COMING INTO FORCE OF PROVISIONS OF THIS ACT). 2006, c. 17, s. 262.

263 OMITTED (ENACTS SHORT TITLE OF THIS ACT). 2006, c. 17, s. 263.
